

# PUBLIC SUBMISSION

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**Docket:** NSF\_FRDOC\_0001

Recently Posted NSF Rules and Notices.

**Comment On:** NSF\_FRDOC\_0001-3479

Request for Information: Development of an Artificial Intelligence Action Plan

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## Submitter Information

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## General Comment

A comprehensive policy on modern artificial intelligence systems is deeply relevant to the American position on the global stage. In some form or fashion, AI systems will be a part of the future of human civilization, and it would be foolish to assume they can be ignored.

However, the access and legal frameworks that current AI companies are requesting goes well beyond reasonable. Companies such as OpenAI cloak their intent behind the value of "national security", speaking in nebulous and open-ended fashion on the topic and alluding only to the importance of American supremacy in this space. Their objective is to secure access to intellectual property of all kinds for AI model training purposes, without permission, control, or compensation to the creators of said IP. This would represent a wholesale form of data-mining, allowing AI model owners to use their AI systems to duplicate many forms of IP, while the original IP owners would have minimal, if any, legal recourse. This would have a chilling effect on all areas that AI interact with; this could include artworks, music, literature, and many other cultural and non-cultural endeavors. It is very possible that sufficiently influential and/or wealthy IP owners would be able to use existing laws and regulations to protect their IPs from this depredation, but those without this leverage would be shut out, their ideas and creations functionally stolen from them.

As AI systems expand out into technological fields, this chilling effect on innovation would spread well beyond the fields of art and language that are the current focus of public conversation. Technical developments in software and manufacturing will eventually come into direct contact, and competition, with the AI systems of the near or far future. If AI system owners have free reign to copy and control the developments and creations of others, growth in any area that AI systems touch will inevitably be stifled. The purported benefits to American competitiveness that AI system owners promise do not take this serious issue into account. If the United States government is to take action regarding AI systems in this environment, it must ensure that the rights of all are protected, and that the "first past the post" developers of AI technologies do not choke out all possible competition and seal America's spirit of innovation away.